HAVADI WILLIAM MASENGERWA
and
TAVENGWA RANGWANI
and
DOROTHY CHIMUNHU
versus
MAPARAHWE PROPERTIES (PRIVATE) LIMITED
and
THE MESSENGER OF COURT, NORTON N.O

HIGH COURT OF ZIMBABWE
DEMBURE & MURASI JJ
HARARE, 5 & 23 June 2026

Opposed Court Application

L Mundieta, for the applicants
A Kapumha, for the 1st respondent
No appearance for the 2nd respondent

DEMBURE J: This matter was heard on 5 June 2026. The court, after hearing argument on the two points *in limine* raised by the first respondent, handed down an *ex tempore* judgment in terms of which the first preliminary point was upheld. The court dismissed the application with costs on a legal practitioner and client scale. The applicants' legal practitioners requested the written reasons for the decision. What follows are the full written reasons thereof.

The application before this court is for a declaratory order and consequential relief made in terms of s 14 of the High Court Act [*Chapter 7:06*]. The applicants sought an order that the Norton Magistrates Court orders under case numbers 600/18, 591/17 and 386/18 be nullified, that the second respondent be interdicted from enforcing or executing any warrant of execution at Norton Magistrates Court in respect of the court orders under case numbers 600/18, 591/17 and 386/18 as well as the costs of suit on a legal practitioner and client scale. The application was opposed by the first respondent.

THE BACKGROUND

The applicants separately entered into agreements of sale with the first respondent in terms of which each of them purchased an immovable property in Kingsdale, Norton, sometime between 2015 and 2017. The first applicant purchased stand number 17671; the second applicant, stand number 17363; and the third applicant, stand number 17617, Kingsdale, Norton. The first respondent later had summons issued against the applicants for their eviction and the demolition of their structures on the stands, alleging breach of the agreements of sale. The matters were registered under separate case numbers 600/18, 591/17, and 386/18 against the first, second, and third applicants, respectively.

The applicants failed to enter appearances to defend the claims. Default judgments were granted in favour of the third respondent. The default judgment against the first applicant under case number 600/18 was granted on 22 March 2019; that against the second applicant, together with one Lucia Ndlovu under case number 591/17, was granted on the same date and the one against the third applicant was entered under case number 386/18 on 25 March 2019. The first respondent did not execute the said judgments.

In 2023, the applicants and the first respondent entered into new agreements of sale in respect of the same stands, and they commenced making payments of the purchase price. The first respondent alleged they breached the contracts, and after notices to remedy the breach were ignored, it cancelled the agreements. On 20 October 2025, the applicants were served with warrants of execution and notices of removal and ejectment from the properties in question. The first respondent was enforcing the default judgments issued against the applicants under case numbers 600/18, 591/17 and 386/18.

The applicants averred that the default orders had been novated following subsequent new agreements of sale by the parties concluded in 2023. They claim their occupation was now based on the new agreements. Accordingly, they contended that the default judgments were nullified when the parties entered into new agreements of sale.

It is common cause that the applicants, before filing the present application, also filed applications for condonation for the late filing of the application for rescission of the default judgments they sought to impugn in this matter at the Magistrates Court at Norton. They also filed applications for stay of execution of the court orders at the same time. At the time this matter was heard, the lower court had pronounced its decision on the said composite

applications. It was also stated for the record that there are pending appeals against the lower court's decision to dismiss their applications. The appeal was filed under case number HCH 205/26 and is still pending.

Mr *Mundieta* indicated that he intended to make an application to amend the draft order and the related amended draft was filed of record. The first respondent raised two points *in limine,* namely that the application is procedurally incompetent and that the relief sought is fatally defective. The point related to the special plea of *alibi lis pendens* was abandoned at the hearing.

I will first address the first preliminary point as it is dispositive of the matter. In respect of that point of law, the parties' counsel made the following submissions.

SUBMISSIONS MADE BEFORE THE COURT

Mr *Kapumha* argued that the application before the court is procedurally incompetent. That it is purported to have been made in terms of s 14 of the High Court Act for a declarator. As the founding affidavit states, the applicants seek the nullification of extant orders of a competent court and an interdict against the messenger of the court from executing the lower court's orders. It was submitted that the application is incompetent on the basis that, in the absence of a proper application made in terms of the rules to challenge the decisions or default judgments, the court cannot relate to s 14, seeking the nullification of orders of a competent court.

It was further submitted that it is trite that an order of court issued by a competent court is valid and binding and can only be set aside on appeal, review, or through an appropriate application in terms of the rules of that court. Instead of following that procedure in the rules, the applicant jumped the gun and applied for a declarator. I was referred to the case of *Mutyasira* v *Gonyora N.O & Ors* HH 180/14. Although the court was relating to an order of the High Court, it was submitted that the sentiments expressed by the court equally apply in this case, where there are Magistrates Court orders. The court cannot review an order of a competent court under the guise of a declarator, but can only do so through an appropriate process in terms of the rules. The procedure adopted accordingly is wrong. The application is bad in law.

Mr *Kapumha* also submitted that the applicants also approached the lower court for condonation and extension of time and stay of execution. Those applications were filed before they approached the High Court, and this application was meant to circumvent the procedural

processes of the lower court by seeking to nullify the orders of the Magistrates Court without following due process. It was further argued that it is not the function of this court to usurp the lawful functions of the lower court, given that there were already pending processes or applications underway in the Magistrates Court. It was, therefore, incompetent to seek to nullify a lawful court order.

There is no legal basis for the relief sought under s 14 of the High Court Act. Counsel submitted that this application being incompetent and the applicants engaging in forum shopping it ought to be dismissed with costs on a higher scale.

Conversely, Mr *Mundieta* submitted that the application is properly before the court. It is done in terms of s 14 of the High Court Act. That section, he argued, is clear that the court can also determine an existing obligation, and an order of court is such an obligation. Reference was made to the cases of *Delta Beverages & Anor* v *Chirau* HH 42/18 and the English case of *Hadkinson* v *Hadkinson* [1952] 2 All ER 567. When the court queried whether s 14 can be invoked where there is an extant order of the lower court having defined the rights and obligations of the parties, counsel maintained that the application is properly before the court. He argued that the court has powers in terms of s 14 to determine the respective obligations of the parties in the circumstances.

The court also referred Mr *Mundieta* to the law set out in *Chiwenga* v *Chiwenga* SC 02/14 that an extant order of court is binding unless set aside and cannot be varied even by the consent of the parties. Counsel acknowledged the legal principle that a court order is valid unless set aside on appeal or review, but he argued, by analogy, that in cases where there is a divorce order in circumstances of change, the court can still entertain the application. In that respect, he maintained that the application is properly before the court, as it concerns the court determining an existing obligation, given that, in 2023, the parties entered into fresh agreements of sale in relation to the same properties. In his opinion, that rendered the orders of the court redundant and ineffective. Counsel accepted that the court orders were not granted in error. He also agreed that, at the time the orders were granted, there were no issues affecting their validity.

Counsel contended that under s 39 of the Magistrates Court Act, the applicants have no other remedy but to approach the court as they have done. The court accordingly has jurisdiction, and the application is properly before it.

In reply, Mr *Kapumha* argued that there has been an admission that what the applicants seek is a nullification of the orders of the court through s 14. That they admitted that that is incompetent, and that is also shown through their attempts to amend or seek to remove the word "nullified" in the draft order. To that extent, the orders of the lower court remain valid. They cannot be nullified through a declarator. Those default judgments remain binding and valid, and the application, therefore, must be dismissed. There are pending appeals against the decisions of the lower court to dismiss the applications for condonation and stay of execution. The applicants are forum shopping. They have created a multiplicity of proceedings. The application should be dismissed with costs on a higher scale.

ISSUE FOR DETERMINATION

The first question to be determined is whether the application is procedurally incompetent or wrong and bad in law.

ANALYSIS

It is settled law that an order of a competent court is valid and binding on parties unless and until it has been set aside on appeal, review, or through an appropriate application in terms of the rules of court. The parties to the court order are, therefore, bound by the decision of the court, notwithstanding that one believes that the order is incorrect or was granted in error. Even that which was granted in default, as long as the order is extant, it is binding on the parties and must be given effect to. This legal position has been reiterated in a number of decisions of the courts in this jurisdiction. See *Magauzi & Anor* v *Jekera* SC 54/22 at p 6, where UCHENA JA made the following apposite remarks:

> "When a court grants an order all subsequent acts affecting the dispute between the parties rely on the court's order and not the reason or facts the court based its judgment on. Execution of judgment debts is based on court orders and not the reason for which the court order was granted. Therefore, a party or the parties cannot disregard a court order as they are bound by it. In the case of *Chiwenga* v *Chiwenga* SC 2/14, it was stated that:
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> > 'The law is clear that an extant order of this Court must be obeyed or given effect to unless it has been varied or set aside by this Court and **not even by consent can parties vary or depart therefrom**. See also *CFU* v *Mhuriro & Ors* 2000 (2) ZLR 405 (S).'" (*my emphasis*)

An extant order of the court has the force of law. It must be complied with. Thus, in *Econet Wireless (Pvt) Ltd* v *The Minister of Public Service, Labour & Social Welfare & Ors* SC 31/16 at pp 5-6, BHUNU JA held that:

> "It is a basic principle of our law which needs no authority that all subsisting laws are lawful and binding until such time as they have been lawfully abrogated. …
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> The doctrine of obedience of the law until its lawful invalidation was graphically put across by LORD RADCLIFFE in *Smith* v *East Elloe Rural District Council* [1956] AC 736 at 769 when he observed that:
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> > 'An order, even if not made in good faith, is still an act capable of legal consequences. It bears no brand of illegality on its forehead. Unless the necessary procedures are taken at law to establish the cause of invalidity and to get it quashed or otherwise upset, it will remain as effective for its ostensible purpose as the most impeccable of orders."

In this case, there is no dispute that there are indeed extant orders of the lower court. The default judgments were entered against the applicants in favour of the first respondent by the Magistrates Court in case numbers 600/18, 591/17, and 386/18. The default judgments were granted in 2019. I will quote verbatim the contents of those default orders against the applicants. The order granted on 22 March 2019 in case number 600/18 against the first applicant reads:

> "1. Default judgment be and is hereby entered against the Defendant.
> 2. Defendant and all those claiming occupation through him be and are hereby ordered to vacate stand number 17671 Kingdale, Norton, forthwith failing which the Messenger of court eject defendant from the said stand.
> 3. Defendant be and is hereby ordered to pay costs of suit."

As regards the second applicant, together with one Lucia Ndlovu, the order granted against them in case number 591/17 reads as follows:

> "1. Default judgment be and is hereby entered against the Defendants.
> 2. The agreement of sale between Plaintiff and Defendants in respect of stand 17636 Kingsdale, Norton be and is hereby cancelled.
> 3. Defendants and all those claiming occupation through them be and are hereby ordered to vacate stand 17636 Kingsdale, Norton forthwith failing which the Messenger of Court eject Defendants from the said stand.
> 4. Plaintiff be and is hereby granted leave to demolish Defendants' structure at stand 17636 Kingsdale, Norton.
> 5. Defendants be and are hereby ordered to pay costs of suit on a legal practitioner and client scale."

The default judgment granted against the third applicant in case number 386/18 also states as follows:

> "1. Default judgment be and is hereby entered against the Defendant.
> 2. Defendant and all those claiming occupation through her be and is hereby ordered to vacate stand number 17617 Kingsdale, Norton, forthwith failing which the Messenger of court eject defendant from the said stand.
> 3. That the Messenger of court be and is hereby ordered and authorised to serve this court order on the Defendant.
> 4. Defendant be and is hereby ordered to pay costs of suit on an ordinary scale."

It is common cause that the above orders have not been set aside. They are default judgments. It is the law that a default judgment is not appealable but can only be set aside through an application for rescission in the appropriate court in terms of the applicable rules of court. The competent court for the defaulting party to 'purge his default' is the court which granted the default judgment. This was affirmed in *Zvinavashe* v *Ndlovu* 2006 (2) ZLR 372. The same legal principle was restated in *Chintengo* v *Tredcor Zimbabwe t/a Trentyre Zimbabwe* SC67 of 19, where MALABA CJ (as he then was) stated that:

> "At law, one cannot appeal against a default judgment. Rather, **the proper procedure is for the aggrieved party to seek rescission of the judgment**.
> …
> In *Zvinavashe* v *Ndlovu* 2006 (2) ZLR 372 (S) the lower court, in granting a default judgment, had proceeded to give reasons thereof. In upholding the nature of the default judgment notwithstanding the reasons given by the court a quo, the Court, per GWAUNZA JA (as she then was) held as follows at 375B-C:
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> > '**Counsel for the respondent contends correctly that a default judgment can only be set aside by a successful application for rescission of the judgment under the rules of the relevant court**. The application must be made by the defaulting party himself, as indicated by the expression, 'purging his default'. It follows that, in *casu*, the appellant's default remained unpurged even as the learned Judge *a quo* considered the merits of the matter and gave reasons for his judgment. By virtue of Rule 62, the learned Judge a quo could simply have 'absolved' the respondent from the application, that is, dismissed it, as long as he was not considering postponing the application or making any other order. The consideration by the Judge *a quo* of the merits of the case, and the giving of his reasons for judgment, therefore had no effect on the status of the judgment given, which remained that of a default judgment.'
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> ...
> [28] The principle which underlies the jurisdiction for setting aside a default judgment has been long established as pronounced in the case of *Evans* v *Bartlam* [1937] AC 473 LORD ATKIN at page 480 stated:
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> > 'The principle obviously is that, unless and until the court has pronounced a judgment upon the merits or by consent, it is to have the power to revoke the expression of its

> cohesive power where that has been obtained only by a failure to follow any of the rules of procedure.'
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> By parity of reasoning, **where a default judgment has not been challenged or has been unsuccessfully challenged, it remains extant and binding. The court seized with the jurisdiction to rescind such a default judgment is the court which granted the judgment**." (*my emphasis*)

It is, therefore, well established that where a default judgment has not been set aside or has been unsuccessfully challenged, it remains extant and binding. The court seized with the jurisdiction to rescind such a default judgment is the court which granted the default judgment. In this case, there is no doubt that they are extant default judgments of the lower court. Procedurally, those orders can only be set aside through an appropriate application for rescission of default judgment in terms of the Magistrates Court (Civil) Rules. The applicants seek that the court invoke its powers under s 14 of the High Court Act to nullify the orders. Mr *Mundieta* also stated that they intend to seek the amendment of their draft orders to state that the orders are unenforceable. I accept that this application is legally incompetent. It is wrong and bad in law. A default judgment can only be set aside by way of an application for rescission of default judgment in terms of the applicable court rules. The procedure to invoke s 14 is legally incompetent. The applicants must 'purge their default' in the lower court. As long as the default judgments remain extant, they are binding on the parties. The orders cannot be competently varied by the consent of the parties. See *Chiwenga* v *Chiwenga* (*supra*).

The question whether the High Court can exercise any discretion and issue a declarator where there is an extant default judgment has also been settled by the Supreme Court. In *Kensington Centre (Pvt) Ltd* v *Valis Bakery (Pvt) Ltd* SC 127/25, the court relating to the case of *Elephant College* v *Chiyangwa & Anor* 2020 (1) ZLR 1287 (S) had this to say:

> "On the legal effect of a default judgment, the court stated at 1290 D-E that:
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> > 'It is not disputable that **a default judgment, unless rescinded, defines the rights and obligations of the parties to the subject matter to which it relates**. **Unless rescinded it remains binding *inter partes* and gives rise to the principles of issue *estoppel* and *res judicata* that I have referred to above**. While the default judgment of 2014 registering the awards was still extant, the appellant could not validly bring the application for a declaratory order as it did. The rights and obligations forming the subject matter of the declaratory order had already been determined against it, albeit by implication."
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> In its *ratio decidendi* at p 1290 G-1291A, the Court held that:
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> > 'It is therefore my finding that after the Magistrates' court had registered the awards, it was not competent for the appellant to approach the High Court for an order declaring the same rights that had been determined and defined in the default judgment registering the

> awards. **Any such approach was invalid**. Put differently, in the circumstances of this matter, the appellant could not avoid the default judgment against it by filing an application for a declaratory order as it did. **The extant Magistrates Court decision, which defined and gave content to the rights of the parties to the dispute, robbed the High Court of any discretion in the matter at first instance**."

[39] The key derivatives from the *Elephant* case are that:

1. The discretion vested in the High Court by s 14 of the High Court Act is not exercisable where the right or obligation has already been finally and definitively decided by another competent court.
2. An extant default judgment is final and definitively defines the rights and obligations of the parties over the matter to which it relates. Such a judgment and any other extant judgment may only be extinguished by way of appeal or review.
3. The principles of issue *estoppel* and *res judicata* preclude a court from revisiting a dispute that has already been finally and definitively resolved."

Given the extant Magistrates Court orders, albeit granted in default, the rights and obligations of the parties in relation to the stands in question stand resolved by the default judgments. It is incompetent for the court to be asked to reverse the orders under the guise of a *declaratur*. The applicants could not validly bring an application for a *declaratur* in the face of the extant default judgments, which also resolved the status of the properties. This court's discretion cannot, therefore, be legally exercised in the face of the extant judgments of the lower court. Mr *Mundieta* admitted that those orders were not granted in error and that nothing existed at the time they were issued that could affect their validity. They cannot become legal nullities merely because of the parties' subsequent agreements. The new agreements cannot nullify or vary a court order. A variation of an order of court can only be competently done by the court which issued the order. The parties cannot do so on their own. The law provides the proper procedure for the rescission of a default judgment. The procedure is found in the rules of the lower court. The extant default judgment could not be validly set aside or reviewed through a declaratory order. Interestingly, the applicants filed this application after appropriately approaching the lower court to seek condonation of the late filing of the application for rescission of the default judgment. Accordingly, the application for a declaratory order in such circumstances where there exists an extant default judgment which Mr *Mundieta* accepted was validly granted is procedurally incompetent. The application is, therefore, wrong and bad in law. The first point *in limine* is accordingly upheld.

It is trite that an application that is wrong and bad in law can only be dismissed. The dismissal, rather than striking the matter off the roll, is the proper exercise of the court's discretion. This application ought to be dismissed. I, therefore, adopt the sentiments expressed in *Ahmed* v *Docking Station Safaris (Pvt) Ltd t/a CC Sales* SC 70/18, where BHUNU JA said:

> "In view of these irregularities, I found it proper to dismiss the application instead of striking it off the roll. In *Mudyavanhu* v *Saruchera* SC 75/15 GWAUNZA JA (as she then was) stated that;
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> > 'It is noted that a number of matters have been struck off the roll by this Court on the ground that the relief sought was not exact in nature and that as a result the related notice of appeal was incurably defective. See *Ndlovu & Anor* v *Ndlovu & Anor* (*supra*). **However, in this case, the court found that the appeal was not only incurably defective but wrong and bad in law. The appeal could therefore not properly be struck off the roll because the appellant had no avenue, legally or procedurally, to follow in case he was inclined to bring the same appeal before this Court**.'
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> The grave irregularities that accompany this application warrant a dismissal. The applicant`s draft order is fatally defective and **the application as a whole is wrong and bad in law. This application can only be dismissed**." (*my emphasis*)

With regard to costs, there was a prayer for costs on a legal practitioner and client scale. It is trite that the award of costs is wholly within the discretion of the court. See Herbstein & Van Winsen, *The Civil Practice of the High Court and Supreme Court of Appeal of South Africa*, 5th ed, Vol 2, p 954. The general rule is that a successful party should have his or her costs. In respect of costs on a legal practitioner and client scale, they are granted in exceptional circumstances. Thus, in *Naik* v *Dongo & Ors* SC 52/20, in para 19, the court aptly restated the law as follows:

> "It is also settled that costs on a higher scale are granted in exceptional circumstances. The grounds upon which the court would be justified to make an award for costs on a legal practitioner and client scale include dishonest or malicious conduct, and vexatious, reckless or frivolous proceedings by and on the part of the litigant concerned. [see *Mahembe* v *Matambo* 2003 (1) ZLR 148 (H) where the court made reference to Rubin L, *Law of Costs in South Africa*, Juta & Co (1949]"

It is clear that punitive costs are not lightly granted. It must, therefore, be shown that there is an abuse of court process or that there is any conduct by the losing party which would justify such a level of costs. I agree with Mr *Kapumha* that this application ought not to have been filed at all. The law regarding the appropriate procedure to adopt to seek to have a default judgment set aside is elementary. It is trite that a default judgment can only be set aside by way

of an application for rescission of default judgment in terms of the relevant rules of the appropriate court. That is also what the applicants ought to have done before needlessly approaching this court, while their applications were still pending at Norton Magistrates Court. It ought to have been apparent to Mr *Mundieta* that the resort to a declarator was wrong. The resultant application was clearly bad. He stubbornly maintained his position despite several attempts by the court to help him understand the law and procedure related to default judgments during our lengthy exchanges at the hearing. He ought to have properly conceded and not further waste the court's time and judicial resources.

I fully endorse the apposite remarks expressed in *Selex ES p.A* v *State Procurement Board & Ors* SC 45/16 at p 7, where the court had this to say:

> "While parties and lawyers are entitled to have their day in court they must exercise that right responsibly with due care and diligence not to abuse court process. It is rather unethical and an abuse of court process for litigants and particularly lawyers to waste the court's time presenting dead unarguable cases in the vain hope that flogging a dead horse will somehow resurrect it to life."

The first respondent has, therefore, been put out of pocket in defending these unnecessary proceedings. For Mr *Mundieta* to remain adamant in the face of clear legal authorities against him was grossly unreasonable. The applicants cannot escape the consequences of irresponsible litigation. The applicants were also engaging in forum shopping. They did not deny that, before approaching this court, they had also filed applications in the Magistrates Court seeking condonation for the late filing of an application for rescission of default judgment and stay of execution, which applications were still pending when this application was filed. They seek similar relief under para (2) of the draft order, wherein an interdict was sought against the enforcement of the judgments. The pursuit of this application was reckless and a blatant abuse of court process. That conduct warrants that this court mark its displeasure with an award of costs on a punitive scale.

Once I find the application to be procedurally incompetent or wrong and bad in law, it becomes unnecessary for the court to consider the second point *in limine*. The court must end its curiosity.

Resultantly, it is ordered that:

The application be and is hereby dismissed with costs on a legal practitioner and client scale.

DEMBURE J: ……

MURASI J: Agrees …….

Mundieta & Wagoneka-Madzivanyika Law Chambers, applicants' legal practitioners
C. Mpame & Associates, first respondent's legal practitioners